

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No. 24-01

VISUAL COMFORT & CO.

v.

COSCO SHIPPING LINES CO., LTD.

JOINT STATUS REPORT AND PROPOSED AMENDED SCHEDULE

Pursuant to the ALJ's email on August 5, 2024, Complainant Visual Comfort & Co. ("Complainant" or "VCC") and Respondent COSCO Shipping Lines Co., Ltd. ("COSCO" or "Respondent") submit the following Joint Status Report and tentative Proposed Amended Schedule.

On August 9, 2024, the Parties conferred to discuss the ESI protocol, the search terms proposed by Complainant regarding RFD6, and the schedule. The Parties reached an agreement on search terms and will revisit the production aspects of the ESI Protocol once Respondent runs the search terms and determines the number of hits.

With respect to a proposed schedule, the Parties reached a tentative agreement, detailed below. The proposed schedule is tentative until Respondent determines the number of hits from running the search terms proposed by Complainant. If, as Respondent is concerned, the number of hits is large, the Parties may need to agree either to narrow the search to yield a number of hits that can be managed within the proposed schedule or to request an additional extension. Subject to that caveat, the Parties propose the following schedule.

Event	Deadline
Deadline for COSCO's production on RFD6	September 9, 2024
Last date to serve supplemental written discovery requests	September 20, 2024
Parties to serve objections and responses to supplemental written discovery requests served by September 20, 2024	October 18, 2024
Depositions end	November 15, 2024
Discovery ends	November 18, 2024
Complainant's opening brief due	December 20, 2024
Respondent's brief due	January 31, 2024
Complainant's reply brief due	February 14, 2025

DATED: August 9, 2024

Respectfully submitted,

/s/ Jennifer M. Oliver

Jennifer M. Oliver

CA Bar No. 911136

BUCHANAN INGERSOLL & ROONEY, LLP

600 W. Broadway, Suite 1100

San Diego, CA 92101

Jennifer.oliver@bipc.com

ATTORNEY FOR CLAIMANT VISUAL COMFORT & CO.

/s/ Nicholas Webb

JEFFREY/FENNEMAN LAW + STRATEGY, PLLC

700 12th St., NW, Suite 700

Washington, DC 20005

Rebecca A. Fenneman

DC Bar No. 1722599

Tel. 202-904-2301

RFenneman@JeffreyFenneman.com

Eric C. Jeffrey
DC Bar No. 252585
Tel. 202-904-2301
EJeffrey@JeffreyFenneman.com

Kaya C. Massey
DC Bar No. 1619925
Tel. 202-904-2301
KMassey@JeffreyFenneman.com

Nicholas L. Webb
DC Bar No. 1741051
Tel. 202-904-2301
NWebb@JeffreyFenneman.com

ATTORNEYS FOR RESPONDENT COSCO SHIPPING LINES CO., LTD.